

Opinion of the Court

contact regarding their official duties over the course of the President's term in office. These two officials are the only ones "elected by the entire Nation." *Seila Law*, 591 U. S., at 224; see Art. II, § 1. The Constitution provides that "the Vice President shall become President" in the case of "the removal of the President from office or of his death or resignation." Amdt. 25, § 1. It also "empowers the Vice President, together with a majority of the 'principal officers of the executive departments,' to declare the President 'unable to discharge the powers and duties of his office.'" *Freytag v. Commissioner*, 501 U. S. 868, 886–887 (1991) (quoting Amdt. 25, § 4). And Article I of course names the Vice President as President of the Senate and gives him a tiebreaking vote. § 3, cl. 4. It is thus important for the President to discuss official matters with the Vice President to ensure continuity within the Executive Branch and to advance the President's agenda in Congress and beyond.

The Vice President may in practice also serve as one of the President's closest advisers. The Office of Legal Counsel has explained that within the Executive Branch, the Vice President's "sole function [is] advising and assisting the President." Whether the Office of the Vice President Is an "Agency" for Purposes of the Freedom of Information Act, 18 Op. OLC 10 (1994). Indeed, the "Twelfth Amendment was brought about" to avoid the "manifestly intolerable" situation that occurred "[d]uring the John Adams administration," when "we had a President and Vice-President of different parties." *Ray v. Blair*, 343 U. S. 214, 224, n. 11 (1952). The President and Vice President together "are the senior officials of the Executive Branch of government" and therefore "must formulate, explain, advocate, and defend policies" of the President's administration. *Payment of Expenses Associated With Travel by the President and Vice President*, 6 Op. OLC 214, 215 (1982).

As the President's second in command, the Vice President has historically performed important functions "at the will